

24STCV22751 24STCV22751

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Case Number: 24STCV22751 Hearing Date: August 3, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

SIMONE

V. MOORE,

Plaintiff,

vs.

SCH

RESTAURANT ASSOCIATES, et al.,

Defendant.

Case No.:

24STCV22751

Hearing

Date:

August 3, 2026

ORDER

DENYING MOTION FOR SUMMARY JUDGMENT

I. BACKGROUND

Plaintiff Simone V. Moore

("Moore") was allegedly physically intimidated and sexually harassed by her co-worker, Defendant Dakota Berman ("Berman"), while working for Defendant SBH Restaurant Associates, LLC ("SBH"). Moore reported this behavior to SBH. SBH allegedly failed to correct Berman's behavior and retaliated against Moore. Moore sued Defendants for seven causes of action, including unlawful retaliation.

On April 17, 2026, SBH filed the instant motion for summary judgment, or, in the alternative, summary adjudication. Moore filed an opposition.

II.

OBJECTIONS

The Court does not rule on the issue of objections, as the Court need only rule on objections to evidence deemed material to its disposition of the motion. (Code of Civ. Proc. § 437c, subd. (q).)

III. LEGAL STANDARD

A

party may move for summary judgment "if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc.[1] § 437c, subd. (a).) "[I]f all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law," the moving party will be entitled to summary judgment. (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

The

moving party bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact, and if he

does so, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, citing to § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

Neither

a moving nor responding party may rely on the mere allegations or denials of its pleadings. A moving party must submit specific admissible evidence showing that the responding party cannot establish at least one element of his, her or its cause of action or defense. The responding party, to defeat the motion, must submit specific admissible evidence showing that a triable issue of material fact does exist as to that element of the cause of action or defense. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

The

“Golden Rule” on a motion for summary judgment or summary adjudication is that “if [a fact] is not set forth in the separate statement, it does not exist.” (*Zimmerman, Rosenfeld, Gersh & Leeds LLP v. Larson* (2005) 131 Cal.App.4th 1466, 1477, citing *United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 337.).

IV. DISCUSSION

SBH requests the Court

enter summary judgment as Moore cannot make a prima facie case against SBH, SBH had legitimate, non-retaliatory reasons for alleged adverse employment actions, and Moore's claims are preempted by the California Workers' Compensation Act.

A. Statement of Facts

On or about March 21, 2022,

SBH hired Moore as a part-time host at Spago, SBH's restaurant. (UMF 10.) As part of Moore's host duties, she was required to welcome and seat guests, provide customer service, process reservations, maintain the cleanliness of the host station and menu, and have knowledge of relevant restaurant information, such as hours, specials, and events. (UMF 11.) Moore also occasionally worked

as a reservationist. (UMF 12.) As a reservationist, Moore was required to field all reservation inquiries, manage online reservations, adjust/confirm reservations as needed, and have knowledge of relevant restaurant information. (UMF 14.)

In October 2022, SBH hired Berman as a busser at Spago. (UMF 15.) As a busser, Berman was required to reset and clear tables, refill water glasses, assist servers, and clean service stations. (UMF 16.)

According to Moore, in 2023, Berman began leaning his body into Moore and hugging Moore. (SF 171, 177.) Moore would attempt to avoid Berman, but Berman would come and learn at the host stand, despite the fact the bussing station is across the restaurant. (SF 173.) Moore also attested Berman attempted to hug and ask out another host on the date, who rejected Berman. (SF 175-178.)

On August 6, 2023, while Moore was leaving work, Berman jumped out in front of her and pretended to punch Moore in the face. (UMF 20-21.) Moore reported the incident that same day to Walter Canas ("Canas"), the former officer manager, via text. (UMF 24.) Canas thanked Moore for the information and copied other Spago managers to advise them of the complaint. (UMF 25.) Berman apologized to Moore the next time they worked together. (UMF 26.) On August 9, 2023, Berman apologized to Moore for the incident via Instagram direct messaging; Moore responded, stating she accepted the apology, two days later. (UMF 27-28.) Moore found this interaction inappropriate; when Moore informed Ian Curtis, front of house manager, he told her this was good enough. (SF 98, 210-211.) Canas emailed Moore that same day, confirming Berman had directly apologized to Moore. (UMF 29.)

On September 19, 2023, SBH issued Moore and three other employees a written warning for improper timekeeping practices; Moore's was a first and final warning. (UMF 36, SF 212.) Moore signed the warning on September 20, 2023. (UMF 37.) Moore alleges that as early as October 25, 2022, she had problems with Tobie Cancino ("Cancino"), manager of special events, allowing her to clock in for work, of which she informed Gina Borowitz ("Borowitz"), Spago's director of human resources ("HR"). (SF 110, 168.) She also complained to Borowitz about Cancino making her wait in the restaurant alley for up to 45 minutes. (SF 191.)

The next day, Moore e-mailed Borowitz about the August 6th incident and Berman's additional inappropriate work behavior. (UMF 38.) Moore alleged Berman stood too close to her at the host stand, was oddly aggressive "like saying hello to me repeatedly and loudly," snatched chits out of her hands, mocked her, and uncomfortably stared at Moore. (UMF 38.) That same day, Spago's HR generalist, Natasha Hartwell ("Hartwell"), called Moore and asked Moore to provide additional details to allow SBH to further investigate. (UMF 40.) Moore did not send a responsive statement. (UMF 41.)

On September 29, 2023, Moore emailed Hartwell about a new incident concerning Berman. Berman allegedly went to the host stand to air his grievances with the hosts, to which Moore told Berman to stay away from her. (UMF 43.) Moore claimed she was told by Curtis to not escalate Berman's harassment. (Mot., Barrick Decl. ¶ 6, Ex. D, Ex. 14.) Moore also noted she felt "extremely harassed and unsafe and uncomfortable by this person who will not stop harassing [her] at work." (Ibid.) She also submitted an incident report, detailing the incident, and informed multiple supervisors she felt unsafe. (SF 250, 257.) Moore also contacted the owner of Spago to inform her of Berman's harassment; she was told to report it to HR and ask the person bothering her to leave her alone. (SF 329-330.) SBH suspended Berman from work from October 1, 2023, to October 9, 2023. (UMF 44.) On October 2, 2023, Hartwell and Moore spoke on the phone; Moore reported Berman spent unnecessary time at the host stand and was invading her personal space. (UMF 46-47.)

Hartwell continued to investigate Moore's complaint by, in part, reviewing documents, watching surveillance video, and interviewing eight witnesses. (UMF 48.) SBH determined Berman's behavior violated company policy. (UMF 50.) SBH issued Berman a written warning stating he had violated SBH's policy for the August 6, 2023, and further unprofessional conduct would result in further disciplinary action, up to and including termination. (UMF 51.) Hartwell recommended Berman for termination due to a violation of the workplace violence policy, which Borowitz denied. (SF 271-273.)

On October 11, 2023, Moore e-mailed Hartwell to inform her Berman was "at the top of her [Instagram Home] page," and he was looking at her Instagram account. (SF 284.) She also informed Hartwell managers told her she was required to be walked to her car. (SF 283.) Hartwell asked for clarification on the managers and suggested Moore utilize tools to

block/restrict access to Berman. (SF 284, Opp., Ex. 31.) There is no indication Moore responded.

Moore alleges that, following her complaint, she was shunned. (SF 321.) Berman and Moore were scheduled together for every single shift until Moore left in August 2024. (SF 319.) Berman would block Moore's movement and pretended to walk into Moore, which Moore reported. (SF 322-323.) Steve Scott Springer, the general manager, stopped being as friendly and scrutinized Moore more. (SF 316, 349.) Moore was uncomfortable and reported all of this to Hartwell. (SF 317.) Moore never worked a Spago private event again; she was snubbed from introductions. (SF 318, 106.)

On or around September 1, 2024, Moore began a California Family Rights Act ("CFRA") leave of absence, scheduled through November 1, 2024. (UMF 54.) On October 24, 2024, Moore submitted a doctor's note to extend her medical leave until December 15, 2024; CRFA would have been exhausted on November 23, 2024, so on November 22, 2024, SBH invited Moore to discuss reasonable accommodations of her disability. (UMF 56.) Moore did not respond. (UMF 56.) On December 1, 2024, Moore notified SBH she resigned, effective December 15, 2024. (UMF 57.)

At all relevant times, Spago was only open Tuesday through Sunday. (UMF 4.) Spago was only open to customers for dinner and evening bar service. (UMF 2.) It is usually open from 5 p.m. to approximately 11 p.m. (UMF 4.)

SBH requests all Spago applicants submit a resume and attend a hiring interview prior to SBH making an employment offer. (UMF 8.) SBH also provides training on prevention of workplace harassment, discrimination, and retaliation. (UMF 9.) Berman attended this training on June 14, 2023, while Moore attended on June 15, 2023. (UMF 9.)

B. Unlawful Harassment

SBH first requests the Court grant summary judgment as to the cause of action for unlawful harassment under the California Fair Employment and Housing Act ("FEHA") as no actionable harassment occurred and SBH took immediate and corrective action.

1. Immediate

Corrective Action

First, SBH argues it took appropriate and immediate action, and therefore cannot be liable. "An employer is strictly liable for harassment committed by its agents or supervisors, but is liable for harassment committed by its other employees only if it fails to take immediate and appropriate corrective action when reasonably made aware of the situation." (Jones v. Department of Corrections & Rehabilitation (2007) 152 Cal.App.4th 1367, 1377.) It is undisputed Berman was not Moore's supervisor at the time of the incident. Therefore, SBH may only be liable if SBH did not take immediate and appropriate corrective action.

SBH argues that SBH acted appropriately because, after Moore complained to HR about Berman, HR suspended Berman, investigated, and issued Berman a written warning. Moore never complained about Berman again, indicating SBH's action appropriately addressed the situation.

The Court disagrees. First, the Court notes SBH offers no case law or analysis that supports SBH's assertion that the suspension, investigation, and written warning is appropriate corrective action. SBH merely asserts as such. The Court also notes the evidence does not show SBH took timely action in response to Moore's initial complaint to Canas, which may be classified as harassment. Although Berman apologized, there is no indication that apology was elicited in response to any action by SBH. Finally, the Court notes Berman has provided evidence she did make further reported about Berman, indicating the action taken may have been insufficient. Therefore, the Court does not find a basis to grant summary judgment on these grounds.

2. Prima

Facie Case

SBH next argues Moore cannot demonstrate a prima facie case for harassment against SBH. "To establish a prima facie case of a hostile work environment, [the plaintiff] must show that (1) [plaintiff] is a member of a protected class; (2) [plaintiff] was subjected to unwelcome harassment; (3) the harassment was based on [plaintiff's] protected status; (4) the harassment unreasonably interfered with [plaintiff's]

work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment.” (Ortiz v. Dameron Hospital Assn. (2019) 37 Cal.App.5th 568, 581.)

SBH claims Moore cannot show the alleged conduct was based on a protected characteristic. When asked at her deposition why Berman pretended to punch her, Moore stated she was unaware—not that it was based upon her status as woman. (UMF 31.) SBH alleges that any further ‘harassing’ behavior, was not actually harassing, and instead within the scope of Berman’s duties.

The Court finds there is dispute of material facts as to this issue. Moore alleged Berman routinely invaded her personal space by standing close, touching the small of her back, and leaning in at the host stand, because she was a woman. All of this behavior would be outside the scope of Berman’s employment. Moore notes Berman acted similarly towards another female host, but never did anything similar to male coworkers. As such, the Court finds there is dispute as to whether Moore can demonstrate harassment occurred based upon a protected status.

SBH next argues Moore cannot show the alleged conduct was severe or pervasive enough to create an abusive working environment. To determine if conduct is severe or pervasive, a court may review frequency and severity of the conduct, if it is physically threatening or humiliating, or if the conduct unreasonably interfered with the plaintiff’s work performance, based upon the impact to a reasonable person. (Miller v. Dept. of Corrections (2005) 36 Cal.4th 446, 462.) However, there is also dispute of material fact as to this issue.

The evidence shows at least once instance of physically threatening conduct (the ‘air-punch’) and multiple reports of further invasive behavior, such as unnecessarily approaching the hosting stand to touch, crowd, and talk to Moore, all after Moore indicating she did not want to interact with Berman. She provides evidence of reports made indicating she was unable to work properly due to these repetitious behaviors. The allegations and evidence support harassing conduct beyond the unpublished cases cited by SBH, which merely indicate one off incidents of rude speech. The Court finds there is dispute of material fact.

Therefore, the Court denies

summary judgment as to this cause of action.

C. Unlawful

Retaliation

SBH requests the Court

grant summary judgment as to the cause of action for unlawful retaliation under FEHA, as Moore cannot establish a prima facie case and all alleged 'retaliation' was done for legitimate purpose. "[I]n order to establish a prima facie case of retaliation under the FEHA, a plaintiff must show (1) he or she engaged in a 'protected activity,' (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action. Once an employee establishes a prima facie case, the employer is required to offer a legitimate, nonretaliatory reason for the adverse employment action. If the employer produces a legitimate reason for the adverse employment action, the presumption of retaliation ' " 'drops out of the picture,' " ' and the burden shifts back to the employee to prove intentional retaliation." (Yanowitz v. L'Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1042.)

SBH argues SBH did not take

any adverse employment action against Moore, as SBH did not limit Moore's shifts, terminate Moore's employment, and scheduled Berman and Moore pursuant to the limited shifts available given Spago's schedule. Moore argues SBH did take adverse employment action against Moore, by failing to move either Spago or Moore to another local SBH location—eventually resulting in Moore quitting--issuing a pretextual final write up against Moore, and by HR representatives claiming Moore's e-mails were stressful, indicating she should send less.

Neither party offered any

case law or analysis to support their assertions that these are or are not indicative of adverse employment actions. Absent analysis, the Court cannot find SBH has met its initial burden of proving SBH did not take adverse employment action against Moore.

The Court also finds there

is dispute as to causal link between protected activity and the employer's action. For example, if SBH continued to schedule Berman with Moore for every shift, as alleged, despite being aware of Moore's ongoing complaints against Berman, that made constitute a causal link to Moore eventually leaving due to

constructive discharge. As SBH offers no case law or analysis in support of this assertion, the Court also cannot find SBH met their burden of proving there is no causal link.

SBH finally argues all decisions were made for legitimate nonretaliatory reasons. SBH specifically focuses upon Breman and Moore's scheduling, which remained consistent from before Moore's reports until Moore's last day of work, due to Spago's limited dinner service. SBH does not address issues such as failure to respond Moore's alleged ongoing complaints regarding Breman, following the original investigation. As there remain unaddressed facts and issues without explanation as to legitimate nonretaliatory purpose, the Court does not find SBH met its burden.

D. Failure to Take Reasonable Steps to Prevent/Correct Harassment

SBH solely argues the Court should grant judgment as to this cause of action, as Moore cannot prove SBH is liable for harassment or retaliation. However, SBH failed to prove, as a matter of law, Moore cannot bring a viable cause of action for harassment or retaliation under FEHA. Therefore, the Court will not grant judgment as to this cause of action.

E. Labor Code Retaliation

SBH next argues Moore cannot bring a cause of action for retaliation under Labor Code section 1102.5, as Moore's alleged 'whistleblowing' activity was a contributing factor in SBH's 'retaliatory' decisions. (Lawson v. PPG Architectural Finishes, Inc. (2022) 12 Cal.5th 703, 712.)

Labor Code section 1102.5 provides no employer, or any person acting on behalf of an employer, shall retaliate against an employee for disclosing information to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate and correct the violation, or for providing information to a public body for an investigation, if the employee has reasonable cause to believe the information discloses a violation of a statute or rule. (LC § 1102.5, subd.

(b.)

Again, SBH argues there is no evidence of retaliatory activity or causal connection. However, SBH again provides no case law or analysis in support of this assertion, merely alleging the consisting scheduling indicates a lack of retaliatory behavior. As noted previously, this is insufficient to meet SBH's burden of demonstrating a lack of dispute of material fact, as a matter of law.

F. Negligent

Hiring, Supervision, and Retention

SBH requests the Court

enter summary judgment as to the cause of action for negligence hiring, supervision, and retention, as Moore has not met her burden of demonstrating Berman created a particular risk or hazard to Moore or other employees. "An employer may be liable to a third person for the employer's negligence in hiring or retaining an employee who is incompetent or unfit." (Roman Catholic Bishop v. Superior Court (1996) 42 Cal.App.4th 1556, 1564–1565.) Liability for negligent supervision of an employee is one of direct liability for negligence. (Delfino v. Agilent Technologies, Inc. (2006) 145 Cal.App.4th 790, 815.) A plaintiff must show that the defendant had actual or constructive notice that a particular employee posed a specific risk of the type of harm that occurred. (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054.)

SBH specifically only

focuses upon knowledge leading up the 'air punch' event, asserting after the fact Moore never complained Berman was unfit to work as a busser and that this unfitness created a particular risk to others. However, again, there is dispute as to material fact as to whether Moore lodged additional complaints. In the additional complaints, there is evidence of Moore identifying how Berman harassed Moore and other employees by refusing to properly do his job. Therefore, this is still at issue and proper for review at trial.

SBH also argues the

workers' compensation exclusivity provisions of the Workers' Compensation Act apply such that workers' compensation is the sole and exclusive remedy for any injuries Moore may have sustained arising from negligent supervision. However, the Workers' Compensation Act does not apply to allegations of discrimination, harassment, or retaliation. It solely is focused upon the injury or death of an

employee. (Labor Code § 3602.) "So long as the basic conditions of compensation are otherwise satisfied [citation], and the employer's conduct neither contravenes fundamental public policy [citation] nor exceeds the risks inherent in the employment relationship [citation], an employee's emotional distress injuries are subsumed under the exclusive remedy provisions of workers' compensation." (Livitsanos v. Superior Court (1992) 2 Cal.4th 744, 754.) As Moore is alleging her injuries stem from harassment, retaliation, and discrimination, Workers' Compensation is not the exclusive remedy to Moore's claims.

G. Constructive Discharge

SBH next argues Moore cannot meet her prima facie burden to establish a cause of action for constructive discharge. "[C]onstructive discharge occurs only when an employer terminates employment by forcing the employee to resign. A constructive discharge is equivalent to a dismissal, although it is accomplished indirectly. Constructive discharge occurs only when the employer coerces the employee's resignation, either by creating working conditions that are intolerable under an objective standard, or by failing to remedy objectively intolerable working conditions that actually are known to the employer. We have said 'a constructive discharge is legally regarded as a firing rather than a resignation.' " (Mullins v. Rockwell Internat. Corp. (1997) 15 Cal.4th 731, 737, internal citations omitted.)

As addressed previously, there is dispute as to whether SBH ignored further reports from Moore as to Berman's alleged harassment. If SBH was aware of this behavior, failed to investigate, and continued to schedule Moore and Berman together, without taking any further action to discipline or disincentivize Berman, this may be considered a basis for constructive discharge. The mere fact Moore was on medical leave prior to her actually filing a notice of resignation or that she moved at a certain point, does not mean the events leading up to her leave or move felt she had no other means to escape harassment than to leave her job.

The Court denies summary judgment on this basis.

H. Punitive

Damages / Conclusion

The Court denies the request to grant summary judgment as to punitive damages as there remains dispute of material fact as to whether any defendant acted with malice or otherwise oppressively.

In total, SBH has failed to meet their burden of presenting case law and analysis demonstrating the undisputed facts mandate summary judgment as to any cause of action. Therefore, the Court denies the motion in full.

V. CONCLUSION

Defendant SBH Restaurant Associates, LLC's motion for summary judgment is DENIED.

Moore is to give notice.

DATED:

August 3, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or

in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated statutory references are to the Code of Civil Procedure.